

TENTATIVE RULING

Jane Doe
v.
F&G Rentals
25CV003452

Minor's Compromise Petition

Hearing Date: August 28, 2026

After reviewing the unopposed minor's compromise petition ("Petition") filed by Erin Drake-Prior ("Petitioner"), the parent and guardian ad litem for eight-year-old Plaintiff Jane Doe ("Plaintiff"), the Court hereby **CONTINUES** the hearing to September 11, 2026, at 8:30 a.m. in Department 14. The continuance gives Petitioner until September 8 to submit additional documents concerning the Edward Jones account and to explain why having this account is in the best interest of Plaintiff.

Petitioner requests that Plaintiff's net settlement funds be deposited or invested "in insured accounts in one or more financial institutions in the state or with a trust company," as detailed in "Attachment 18a(2)," and "subject to withdrawal only on authorization of the court." [Petition at p. 8, ¶ 18a(2).] However, Attachment 18a(2) was not included with the Petition. Although the Order to Deposit names "Edward Jones – Carmel" as the financial institution holding the funds, it does not specify whether the account is insured or what type of account Petitioner plans to open. Regardless of the intended account type, the supplemental papers must fully disclose all information bearing on the reasonableness of the compromise, including why depositing Plaintiff's net settlement funds in a blocked account is in their best interests. [Cal. Rules of Ct., rule 7.950.]

Apart from the points mentioned above, the Court has no further concerns regarding the disbursement of Plaintiff's settlement funds.

Accordingly, the Petition hearing is **CONTINUED** to September 11, 2026, at 8:30 a.m. in Department 14, and supplemental papers are due by September 8.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.